



A.K.U.M.S

CONSTITUTION OF

THE

**ASSOCIATION OF KENYATTA UNIVERSITY MEDICAL STUDENTS
(AKUMS)**

REVISED EDITION @2026

KENYATTA UNIVERSITY, SCHOOL OF MEDICINE

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PREAMBLE

We, the MBChB students of **Kenyatta University**,

ACKNOWLEDGING the guidance and providence of Almighty God in all endeavours;

RECOGNIZING the necessity of a unified student body to represent, protect, and advance the interests of medical students at Kenyatta University;

COMMITTING to uphold professionalism, integrity, and ethical responsibility in all aspects of medical training and practice;

VALORIZING collaboration with local and international institutions to enrich learning and service opportunities;

UNDERSTANDING the importance of solidarity, mutual support, and active participation in fostering a vibrant medical student community;

Do hereby establish the **Association of Kenyatta University Medical Students (AKUMS)**, adopt this Constitution as the supreme guiding document of our Association, and pledge to uphold its principles and objectives for the benefit of our members, the medical profession, and society at large.

MAY GOD BLESS AKUMS



CHAPTER ONE: NAME AND PURPOSE OF THE ASSOCIATION

Article 1: Name

1. The Association shall be known as the **Association of Kenyatta University Medical Students (AKUMS)**, hereinafter referred to as “the Association.”
2. The official abbreviation of the Association shall be **AKUMS**.
3. **No other name, acronym, or variation thereof shall be used in any advertisement, correspondence, publication, event, or representation of the Association** without the express written approval of the Executive Council.

Article 2: Scope of operation

1. The Association shall operate within the jurisdiction of **Kenyatta University**, including all its constituent campuses offering medical training under the School of Medicine.
2. The Association may, upon approval by the Executive Council and the Dean of the School of Medicine, collaborate with recognized national and international bodies with similar aims and objectives.
3. All activities of the Association shall be conducted in accordance with the **Kenyatta University Rules and Regulations** and other relevant statutes.

Article 3: Aims and objectives

The aims and objectives of the Association shall be to:

1. Promote academic excellence, research competence, and professional ethics among medical students of Kenyatta University.
2. Empower medical students to utilize their knowledge, skills, and capacities for the benefit of the community and the nation at large.
3. Provide a forum for medical students to discuss matters related to health, education, science, and social welfare, and to formulate policies that enhance academic and professional growth.
4. Serve as the official representative body of all medical students in matters affecting their academic, social, and welfare interests before the University Administration and external institutions.
5. Establish and maintain collaboration with other medical student associations, professional bodies, and international organizations in furtherance of the Association's objectives.
6. Promote mentorship, leadership development, and character building to nurture holistic, competent, and compassionate future healthcare professionals.
7. Foster unity, cooperation, and a spirit of professionalism among members through teamwork, discipline, and mutual respect.
8. Engage in community outreach, public health education, and social responsibility programs including but not limited to drug awareness, HIV/AIDS prevention, sexual and reproductive health, nutrition, and charity initiatives.
9. Collaborate with governmental and non-governmental organizations in activities aimed at improving community health and welfare.
10. Promote physical, mental, and emotional well-being of members through advocacy, counselling, and support programs.

11. Encourage and facilitate participation in extracurricular, cultural, and sporting activities to ensure holistic development.
12. Build a cohesive family of medical professionals dedicated to service, integrity, and lifelong learning.



CHAPTER TWO: MEMBERSHIP

Article 4: Membership

1. Membership of the Association shall comprise:
 - a) **Ordinary Members** – All students duly enrolled at **Kenyatta University** pursuing the **Bachelor of Medicine and Bachelor of Surgery (MBChB)** degree shall be members of the Association by default.
 - b) **Alumni Members** – Any alumnus of Kenyatta University who pursued the Bachelor of Medicine and Bachelor of Surgery degree may, upon registration and payment of the prescribed fee, be recognized as a member of the Association.
 - c) **Affiliate Members** – Persons, institutions, or organizations whose objectives align with those of the Association may, upon approval by the Executive Council, be admitted as affiliate members without voting rights.
2. Admission to membership shall be open without discrimination on the basis of gender, race, religion, or political affiliation.
3. Every member shall be entered into the Association's register maintained by the Office of the Secretary General.

Article 5: Enrolment and subscription fees

1. Registration shall be conducted once upon admission to the Association at an enrolment fee of **Kenya Shillings One Hundred (Ksh. 100/=)**.
2. Semester subscriptions shall be payable at the beginning of every semester at a fee of **Kenya Shillings One Hundred (Ksh. 100/=)** or as may be revised from time to time by the Executive Council with the approval of the General Assembly.
3. Non-payment of subscription fees for two consecutive semesters without valid reason shall render one an inactive member until arrears are settled.
4. The Treasurer shall maintain accurate financial records of all registration and subscription payments.

Article 6: Rights and privileges of members

1. Every member shall have fair and equitable access to all services, facilities, and programs of the Association through lawful means.
2. Only registered and fully subscribed ordinary members (in accordance with article 4) shall:
 - a) Be eligible to vote in any election or decision of the Association.
 - b) Be eligible to contest for any elective position within the Association.
3. Every member shall have the right to:
 - a) Participate in meetings, discussions, and decision-making processes of the Association.
 - b) Question the credibility or performance of any office bearer or organ of the Association in accordance with this Constitution.
 - c) Cast a **vote of no confidence** in a non-performing office bearer through a democratic process as prescribed in this Constitution.
4. All decisions of the Association shall be made through an **open, democratic, and participatory process**, unless otherwise provided herein.

Article 7: Cessation of membership

Membership shall cease under the following circumstances:

1. Upon completion of the Bachelor of Medicine and Bachelor of Surgery program at Kenyatta University, unless the member registers as an alumnus.
2. Upon failure to pay prescribed enrolment fee
3. Upon voluntary resignation submitted in writing to the Secretary General and approved by the Executive Council.
4. Upon disciplinary expulsion in accordance with **Article 5** of this Chapter.
5. Upon death of the member.
6. Upon discontinuation, transfer, or expulsion from the University.

A member who ceases to belong to the Association shall forfeit all rights and privileges thereof.

Article 8: Discipline

1. Discipline shall mean compliance with proper conduct as embodied in this Constitution and all rules or regulations enacted by the organs of the Association.
2. Any member who deliberately undermines, disrupts, or brings disrepute to the Association, its activities, or its name shall be subject to disciplinary action.
3. Disciplinary measures may include a warning, suspension, or **excommunication** (expulsion), depending on the gravity of the offence.
4. Before any penalty is imposed, the accused member shall be given a fair opportunity to defend themselves before the **Disciplinary Committee**, whose recommendations shall be ratified by a simple majority of the Executive Council or the General Assembly as appropriate.
5. Any expelled member may appeal the decision in writing to the General Assembly within fourteen (14) days from the date of communication of the disciplinary decision.

CHAPTER THREE: ORGANS OF THE ASSOCIATION

Article 9: Organs of the Association

1. The governing organs of the Association shall be:
 - a) The **Annual General Meeting (AGM)**;
 - b) The **General Assembly**;
 - c) The **Executive Council**;
 - d) Standing and Ad hoc **Committees** as established under this Constitution.
2. These organs shall derive their authority from this Constitution and shall be bound by its provisions in the execution of their respective mandates.
3. The powers and functions of each organ shall be exercised in accordance with the principles of transparency, accountability, inclusivity, and democratic participation.

Article 10: Annual General Meeting (AGM)

1. **Supremacy and Authority**
The AGM shall be the **supreme decision-making organ** of the Association, and its resolutions shall be binding on all other organs and members.
2. **Convening and Notice**
 - a) The AGM shall be convened **once every academic year**, preferably on the **first Saturday of March**, by the Secretary-General under the direction of the Executive Council.
 - b) A notice indicating the date, venue (or online platform), and agenda shall be circulated to all registered members **at least fourteen (14) days** prior.
3. **Agenda and Functions**
The AGM shall:
 - a) Receive, consider, and adopt annual reports of the Executive Council, including academic, welfare, and social activities.
 - b) Approve the audited financial report from the Finance Officer.
 - c) Receive the State of the Association Address from the outgoing President.
 - d) Conduct elections and inaugurate new office bearers as provided under Chapter 5.
 - e) Deliberate on constitutional amendments or policy resolutions.
 - f) Confer honorary or affiliate membership, where applicable.
 - g) Consider any other business duly communicated to the Secretary-General.
4. **Quorum and Voting**
 - a) The quorum shall be **one-third (1/3)** of registered active members.
 - b) Decisions shall be by **simple majority**, unless otherwise specified (e.g., constitutional amendments require two-thirds majority).
 - c) Voting may be by **secret ballot, online, or hybrid**, as determined by the Executive Council.
5. **Special or Emergency Meetings**
 - a) A Special General Meeting (EGM) may be convened by:
 - i. The Executive Council, by **two-thirds (2/3) majority**, or
 - ii. A written petition signed by **one-quarter (1/4) of registered members**.
 - b) Notice shall be given **at least seven (7) days** in advance, and only the stated business may be transacted.
6. **Record Keeping**
The Secretary-General shall ensure accurate **minutes and resolutions** are recorded, signed, archived, and copies made available to members **within fourteen (14) days**.

Article 11: General Assembly

1. **Composition and Role**

The General Assembly shall consist of **all ordinary members** and serve as the deliberative and consultative body between AGMs.

2. **Functions**

The General Assembly shall:

- a) Review progress of the Association's programs and policies.
- b) Ratify decisions and reports presented by the Executive Council.
- c) Discuss matters of academic, welfare, and professional concern.
- d) Consider disciplinary appeals or motions of no confidence against office bearers.

3. **Meetings**

- a) Ordinary meetings shall be held **at least once per semester**.
- b) Special meetings may be convened by the President or upon written request of **one-third (1/3) of registered members**.

4. **Quorum and Resolutions**

- a) The quorum shall be **one-quarter (1/4)** of registered active members.
- b) Resolutions shall be binding upon all organs of the Association, provided they do not contravene this Constitution or University regulations.

Article 12: The Executive Council

1. The **Executive Council** shall be the **executive and administrative arm** of the Association responsible for implementing the policies, programs, and decisions of the AGM and General Assembly.

2. The Executive Council shall comprise the following officers:

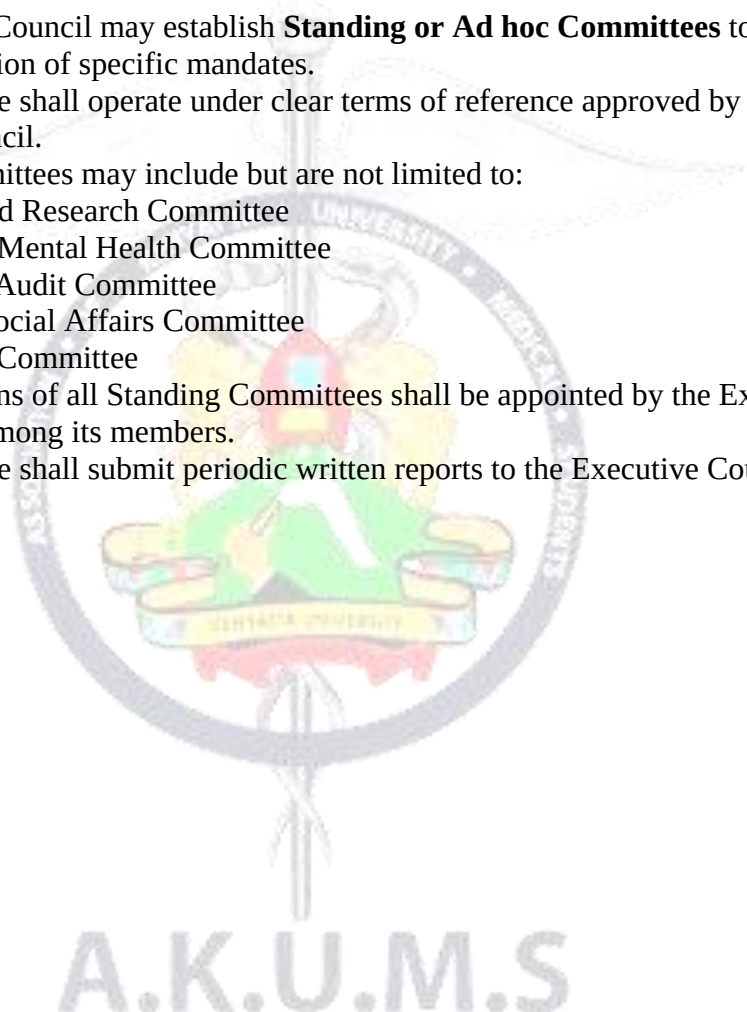
1. The President
2. The Vice President
3. The Secretary General
4. The Deputy Secretary General
5. The Organizing Secretary
6. The Deputy Organizing Secretary
7. The Finance Officer
8. The Academic Secretary
9. The Publicity Officer
10. The Sports Officer
11. Class Representatives from Years 1 to 6

2. The functions of the Executive Council shall include:
 - a) Formulating and executing policies of the Association in line with resolutions of the AGM and General Assembly.
 - b) Coordinating the day-to-day activities and programs of the Association.
 - c) Managing and safeguarding the Association's finances and property.
 - d) Representing the Association in official capacities within and outside the University.
 - e) Preparing and submitting reports and budgets to the AGM.
 - f) Establishing committees and delegating duties where necessary.

3. The Executive Council shall meet at least **twice per semester**, and additional meetings may be convened by the President or at the request of at least one-third (1/3) of its members.
4. The quorum for Executive Council meetings shall be **two-thirds (2/3)** of its voting members.
5. Decisions shall be reached by consensus or, where necessary, by a simple majority vote.

Article 13: Committees

1. The Executive Council may establish **Standing or Ad hoc Committees** to facilitate efficient execution of specific mandates.
2. Each Committee shall operate under clear terms of reference approved by the Executive Council.
3. Standing Committees may include but are not limited to:
 - a) Academic and Research Committee
 - b) Welfare and Mental Health Committee
 - c) Finance and Audit Committee
 - d) Sports and Social Affairs Committee
 - e) Disciplinary Committee
4. The Chairpersons of all Standing Committees shall be appointed by the Executive Council from among its members.
5. Each Committee shall submit periodic written reports to the Executive Council.



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CHAPTER FOUR: THE EXECUTIVE COUNCIL

Article 14: Establishment

1. There shall be established an organ known as **The Executive Council**, herein referred to as *the Council*, which shall be the chief administrative and policy implementation body of the Association.
2. The Council shall be responsible to the General Assembly and shall function in accordance with this Constitution and resolutions passed by the General Assembly.
3. The Council shall ensure effective coordination of the Association's activities, uphold discipline, and safeguard the image and integrity of the Association.

Article 15: Composition

The Executive Council shall consist of the following members:

1. The President
2. The Vice President
3. The Secretary General
4. The Deputy Secretary General
5. The Organizing Secretary
6. The Deputy Organizing Secretary
7. The Finance Officer
8. The Academic Secretary
9. The Publicity Officer
10. The Sports Officer
11. Class Representatives from Years 1 to 6

Article 16: General Responsibilities of the Executive Council

The Council shall:

1. Implement all resolutions and policies of the General Assembly.
2. Coordinate, supervise, and harmonize all Association activities.
3. Manage the Association's property, resources, and finances.
4. Represent the Association in all official matters within and outside the University.
5. Foster unity, mentorship, and professional development among members.
6. Uphold transparency, accountability, and discipline within the Association.
7. Prepare annual and semester reports for presentation to the General Assembly.
8. Convene meetings of the General Assembly and relevant committees.
9. Establish or dissolve sub-committees for effective functioning.

Article 17: Duties of Individual Officers

1. The President

The President shall:

- a) Oversee other members of the Executive Council in fulfilling their responsibilities.
- b) Manage the affairs of the Association and ensure adherence to its Constitution.
- c) Chair all meetings of the Executive Council and the General Assembly.

- d) Represent the Association before the University administration and external bodies.
- e) Approve all decisions and activities of the Association in consultation with the Executive Council.
- f) Appoint members to standing committees, special committees, and taskforces.
- g) Supervise and coordinate the work of various committees.
- h) Have signatory authority on the Association's financial and official documents.
- i) Exercise a casting vote in case of a tie during Council meetings.

2. The Vice President

The Vice President shall:

- a) Assist the President in managing the affairs of the Association.
- b) Head the Welfare Committee and oversee welfare, discipline, and mental health initiatives.
- c) Ensure order, teamwork, and discipline among members.
- d) Assume the powers and duties of the President in his or her absence.
- e) Perform any other duties delegated by the President or the Executive Council.

3. The Secretary General

The Secretary General shall:

- a) Serve as the chief administrative officer of the Association.
- b) Head the Alumni, Outreach, and External Links Committee.
- c) Handle all official correspondence and communication on behalf of the Association.
- d) Keep accurate records of minutes, reports, and official documents.
- e) Receive and process member requests, proposals, and communication.
- f) Maintain a comprehensive register of members.
- g) Ensure effective coordination between the Executive Council, members, and external partners.

4. The Deputy Secretary General

The Deputy Secretary General shall:

- a) Assist the Secretary General in all administrative duties.
- b) Be in charge of documentation, record filing, and archiving.
- c) Assume the functions of the Secretary General in his or her absence.
- d) Ensure accurate dissemination of information to members and committees.

5. The Organizing Secretary

The Organizing Secretary shall:

- a) Head the Sports and Entertainment Committee.
- b) Plan, coordinate, and execute both internal and outreach programs of the Association.
- c) Mobilize participation in academic, cultural, and social events.
- d) Draft and submit proposals for events, conferences, and external programs.
- e) Brief members on upcoming activities and emerging issues.

6. The Deputy Organizing Secretary

The Deputy Organizing Secretary shall:

- a) Assist the Organizing Secretary in carrying out his or her duties.

- b) Head the Publicity Committee and oversee public relations matters.
- c) Manage and coordinate promotion of events and initiatives.
- d) Ensure positive representation of the Association's image to the public.

7. The Finance Officer

The Finance Officer shall:

- a) Serve as the chief custodian of the Association's finances.
- b) Head the Finance and Planning Committee.
- c) Maintain accurate and transparent records of all income and expenditure.
- d) Prepare and present financial statements and reports to the Executive Council and General Assembly.
- e) Oversee the financial needs and budgeting of the Association.
- f) Supervise all fundraising, sponsorship, and financial mobilization activities.
- g) Be a mandatory signatory to the Association's bank account.

8. The Academic Secretary

The Academic Secretary shall:

- a) Represent the academic interests of members.
- b) Organize academic forums, symposia, mentorship, and tutorial sessions.
- c) Coordinate with the School of Medicine and related departments on academic concerns.
- d) Oversee research, innovation, and academic competitions.
- e) Head the Academic Affairs Committee.

9. The Publicity Officer

The Publicity Officer shall:

- a) Manage the Association's public relations, publicity, and branding.
- b) Coordinate official communication channels, including posters, newsletters, the website, databases, digital storage, and social media pages.
- c) Ensure timely dissemination of information to members.
- d) Promote the Association's image and visibility across internal and external platforms.
- e) Provide technical support for virtual meetings, elections, and communication systems.
- f) Ensure data protection and digital security of the Association's information.
- g) Innovate and implement digital tools to enhance academic and administrative efficiency

10. The Sports Officer

The Sports Officer shall:

- a) Coordinate and oversee all sports and recreational activities of the Association.
- b) Promote physical health, teamwork, and wellness among members through regular sporting events.
- c) Liaise with the University's Sports Department and other medical associations on sporting matters.
- d) Organize interclass and interfaculty tournaments to strengthen unity and collaboration.
- e) Maintain and account for all sports equipment and facilities belonging to the Association.

11. Class Representatives (Years 1–6)

The Class Representatives shall:

- a) Represent the unique interests and concerns of their respective classes to the Executive Council.
- b) Facilitate communication between the Executive Council and class members.
- c) Mobilize participation of class members in Association activities.
- d) Assist in the collection of registration and subscription fees.
- e) Promote discipline, unity, and teamwork within their classes.
- f) Perform any other duties as may be assigned by the President or the Council.

Article 18: Sub-Committees

1. The Executive Council shall operate through standing and ad hoc sub-committees to enhance functionality.
2. Standing sub-committees shall include but not be limited to:
 - a) Finance and Planning Committee
 - b) Academic Affairs Committee
 - c) Sports and Entertainment Committee
 - d) Publicity Committee
 - e) Alumni and Outreach Committee
3. Each sub-committee shall be chaired by the respective officer and may co-opt ordinary members with relevant skills or interests.
4. Sub-committees shall present periodic reports to the Executive Council.
5. The Council may dissolve, merge, or create sub-committees as it deems fit.

Article 19: The Patron

1. **Appointment**
There shall be **one principal Patron**, nominated by the Executive Council and approved by the Annual General Meeting (AGM).
The Association may additionally have **up to two assistant Patrons**, nominated by the Executive Council and approved by the AGM, to provide support and ensure continuity of guidance.
2. **Eligibility and Term**
Patrons shall be members of the University staff of good standing and serve a **renewable term of two (2) years**.
3. **Roles and Responsibilities**
The Patron(s) shall:
 - a) Advise the Executive Council on matters relating to **administration, policy, and constitutional compliance**.
 - b) Act as a link between the Association, **University administration**, and relevant external bodies.
 - c) Offer **mentorship, moral, and professional guidance** to members.
 - d) Attend meetings, functions, or activities of the Association **as invited or deemed necessary**.
 - e) Preside over **inaugurations and handovers** in an advisory or observer capacity.
 - f) Possess **no voting rights** in the Association.

4. **Delegation and Assistance**

Assistant Patrons may act on behalf of the principal Patron when unavailable, ensuring continuity of guidance, supervision, and advisory support to the Association.



CHAPTER FIVE: ELECTIONS

Article 20: Authority of the Leadership Selection Committee

1. There shall be established a Leadership Selection Committee (LSC), which shall be the sole body mandated to oversee, conduct, and conclude the selection of all leaders of the Association through an interview-based process.
2. The LSC shall operate independently and shall not be subject to the direction, control, or interference of the Executive Council or any other organ of the Association.
3. All leadership positions within the Association shall be filled exclusively through the process conducted by the LSC, and no general elections shall be held.

Article 21: Composition of the Leadership Selection Committee

1. The Leadership Selection Committee shall consist of one (1) representative from each academic year, from Year One (1) to Year Six (6).
2. Each academic year shall select its representative through a class-based democratic process, the details of which shall be determined by the respective class.
3. Members of the LSC shall, during their first sitting, elect from among themselves a Chairperson and a Secretary.
4. A member of the LSC shall:
 - a) Be in good academic standing
 - b) Have no active disciplinary cases
 - c) Not be a candidate for any leadership position during that selection cycle

Article 22: Tenure and Vacancy

1. The Leadership Selection Committee shall be constituted at the beginning of each leadership selection cycle and shall remain in office for the entire leadership term for purposes of conducting the initial leadership selection and any **special leadership selection** arising from a vacancy.
2. Upon the successful declaration and gazettement of leaders, the Committee shall become dormant and shall be **reconvened whenever a vacancy arises** during the leadership term.
3. The Leadership Selection Committee shall stand dissolved upon the expiry of the leadership term and upon the completion of all special leadership selections, if any.
4. A member of the Leadership Selection Committee may be removed by their respective class through a **two-thirds ($\frac{2}{3}$) class resolution** for gross misconduct, incapacity, or violation of this Constitution.
5. In the event of resignation, graduation, recall, or inability to serve, the concerned class shall appoint a replacement within **one (1) month**, and such replacement shall serve for the remainder of the Committee's term

Article 23: Independence and Accountability

1. The Leadership Selection Committee shall function independently of the Executive Council and shall be accountable directly to the General Assembly.
2. The LSC shall be allocated an operational budget approved by the General Assembly to facilitate the leadership selection process.

3. Any attempt by a member of the Executive Council or any member of the Association to influence, coerce, or interfere with the operations of the LSC shall constitute gross misconduct and shall be subject to disciplinary action, including removal from office.

Article 24: Functions of the Leadership Selection Committee

1. The Leadership Selection Committee shall:
 - a) Declare all leadership positions vacant at the beginning of each leadership cycle.
 - b) Determine and publish the leadership selection calendar.
 - c) Publicly call for applications and nominations for all leadership positions.
 - d) Receive, vet, and shortlist applicants based on merit, integrity, and eligibility criteria.
 - e) Conduct structured interviews for all shortlisted candidates using a standardized evaluation framework.
 - f) Deliberate and vote internally to select suitable candidates for each leadership position.
 - g) Announce and gazette the selected leaders within seven (7) days of conclusion of the interview process.
 - h) Serve as the advisory body on leadership selection, governance, and constitutional interpretation relating to leadership transition.

Article 25: Eligibility to Apply for and Hold Office

1. General Eligibility

- a) An applicant must be a duly registered and subscribed member of the Association.
- b) An applicant must be in good academic standing as certified by the School of Medicine.
- c) An applicant must have no record of disciplinary action by the University or the Association.
- d) Members serving on the **Leadership Selection Committee (LSC)** shall **not apply for, be interviewed for, or hold any leadership position** during their tenure on the Committee.

2. Application and Selection

- a) Leadership positions shall be filled through an **open application and interview-based selection process** conducted by the Leadership Selection Committee.
- b) Self-application shall be permitted.
- c) All applicants shall be subjected to vetting and structured interviews in accordance with this Constitution.

2. Position Specific Eligibility Requirements

- a) The positions of **President and Secretary-General** shall be reserved for members in Fourth (4th) and Fifth (5th) Academic Years only. No member who, at the date of official announcement of the leadership selection process by the Leadership Selection Committee, **has progressed into the Sixth (6th) Academic Year shall be eligible to**

apply for, be shortlisted for, interviewed for, or appointed to any leadership position of the Association.

b) The position of Class Representative shall be held by a member of the respective class being represented, subject to the eligibility provisions of this Constitution.

c) All other leadership positions **shall be open** to any qualified and subscribed member of the Association, **except members in the Sixth (6th) Academic Year**, subject to the provisions of this Constitution.

d) **First Year members** shall be eligible to hold only the positions of **Deputy Organizing Secretary and Publicity Officer**, except where appointed in an interim capacity following a vacancy.

4. Conduct and Ethical Standards

a) All applicants shall uphold the integrity, dignity, and values of the Association throughout the leadership selection process.

b) Selected leaders shall maintain the same standards of conduct throughout their term of office.

c) Any violation of ethical or constitutional standards during the selection process or term of service shall constitute grounds for disqualification or removal from office

Article 26: Leadership Transition and Selection Procedures

1. Leadership Transition Period

a) The change of leadership of the Association shall ordinarily be conducted **within the month of March**, and **prior to the Medical Students' Association of Kenya (MSAKE) General Elections**, to ensure continuity and effective representation.

b) The leadership selection process shall be completed in sufficient time to allow for an orderly handover before participation in external representative structures, including MSAKE.

2. Initiation and Formation of the Leadership Selection Committee

a) The **outgoing President** shall formally initiate the leadership transition process by notifying the Association and triggering the formation of the **Leadership Selection Committee (LSC)**.

b) The Leadership Selection Committee shall be constituted **on or before the month of March** for purposes of conducting the leadership selection process in accordance with this Constitution.

c) Where the office of the President is vacant or incapacitated, the Executive Council shall designate a member to initiate the process, subject to the guidance of the Patron or Dean.

3. Leadership Selection Process

a) Upon its constitution, the Leadership Selection Committee shall:

- i) Declare leadership positions vacant;
- ii) Publish the leadership selection timetable;
- iii) Call for applications and nominations;
- iv) Vet and shortlist applicants;
- v) Conduct structured interviews;

- vi) Deliberate and select suitable candidates for each position.
- b) The process shall be conducted in a transparent, merit-based, and timely manner, without undue delay.

4. **Handover and Assumption of Office**

- a) Upon the declaration and gazettelement of selected leaders, a formal handover shall be conducted within a reasonable period as determined by the Leadership Selection Committee.
- b) Newly selected leaders shall assume office immediately upon completion of the handover process, unless otherwise determined by the Committee for administrative reasons.

5. **Extension of Term in Exceptional Circumstances**

- a) Where **unavoidable or exceptional circumstances** make it impracticable to conduct the leadership selection process within the intended period, the **Executive Council may continue in office for a limited transitional period.**
- b) Any such extension of term shall **only be valid upon written approval of the Patron or the Dean of the School of Medicine.**
- c) The extension shall be strictly temporary and shall exist solely to facilitate the completion of the leadership selection and handover process.

Article 27: Transition

1. **Tenure of Office**

- a) All Executive Council members shall hold office for one (1) year, from the commencement of the leadership term in March to the eve of the next leadership selection cycle.
- b) No official shall serve more than two consecutive terms in the same office.

2. **Transition Period**

- a) The transition period shall begin immediately after the declaration of the selected leaders and last until the formal handover and assumption of office.
- b) During this period:
 - Outgoing officials shall prepare and submit written handover reports to the Secretary-General.
 - The Finance Officer shall prepare and present the final financial report to the Executive Council and the incoming Finance Officer.
 - The President shall prepare a State of the Association Report summarizing the year's performance.
 - The Secretary-General shall coordinate logistical and documentation aspects of the handover.

3. **Inauguration and Oath of Office**

- a) The official swearing-in of the newly selected Executive Council shall take place during the Annual General Meeting (AGM) convened in accordance with Article 10 of this Constitution.
- b) The Patron or University representative shall administer the Oath of Office.
- c) The outgoing Executive Council shall be deemed dissolved immediately after the new officials are sworn in.

4. Oath of Office

Each selected official shall take the following oath before assuming office:
“I, [Name], having been appointed to serve as [Position] of the Association of Kenyatta University Medical Students (AKUMS), do hereby solemnly affirm that I shall faithfully execute my duties in accordance with the Constitution of AKUMS, uphold the values of integrity, service, and accountability, and work for the advancement of the Association and the welfare of its members. So help me God.”

Article 28: Filling of Vacancies

Any vacancy arising from resignation, removal, death, incapacitation, or other unforeseen circumstances shall be filled through a **special leadership selection process** conducted by the Leadership Selection Committee.

1. The Committee shall ensure that the vacancy is filled within a reasonable period, and in a manner consistent with the procedures outlined in Articles 20–26.
2. The outgoing Executive Council or designated officer shall facilitate continuity until the special selection is completed.

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CHAPTER SIX: FINANCE

Article 29: Source of Funds

The funds of the Association shall be derived from the following sources:

- a) Registration and subscription fees paid by members.
- b) Donations, grants, or sponsorships from individuals, organizations, or institutions approved by the Executive Council and ratified by the AGM.
- c) Income from Association activities, such as publications, events, and projects.
- d) Any other lawful source as may be approved by the Executive Council and the Patron.

Article 30: Custody of Funds

1. All funds of the Association shall be deposited in an official **bank account** opened and maintained in the name of the **Association of Kenyatta University Medical Students (AKUMS)**.
2. The account shall be operated under **three (3) mandatory signatories**, namely:
 - a) The Finance Officer — Principal Signatory
 - b) The President — Co-signatory
 - c) The Secretary General — Co-signatory
3. Any withdrawal or financial transaction shall require the signatures of **any two (2)** of the three authorized signatories.
4. The Executive Council may, upon approval by the AGM, establish additional sub-accounts for specific projects or activities.

Article 31: Budgeting and Expenditure

1. The Finance Officer shall, in consultation with the Executive Council, prepare an **annual budget** for presentation and approval by the **Annual General Meeting (AGM)**.
2. No expenditure shall be incurred unless it has been approved within the limits of the budget or through a supplementary allocation approved by the Executive Council.
3. All financial transactions shall be supported by valid vouchers, receipts, and documentation.
4. The Finance Officer shall ensure prudent and transparent use of funds for the sole benefit of the Association and its members.

Article 32: Financial Reporting

1. The Finance Officer shall prepare and submit:
 - a) **Quarterly financial statements** to the Executive Council.
 - b) An **annual financial report** to the AGM for adoption.
2. The financial report shall include statements of income and expenditure, bank reconciliations, and a summary of assets and liabilities.
3. Copies of the financial report shall be made accessible to all members upon request.

Article 33: Audit

1. The accounts of the Association shall be audited **annually** by an **independent auditor** appointed by the AGM upon recommendation of the Executive Council.

2. The auditor shall not be a current member of the Executive Council or a signatory to any Association account.
3. The auditor shall have unrestricted access to all financial records, books, and documents of the Association.
4. The auditor's report shall be presented at the AGM and circulated to members not later than **fourteen (14) days** before the meeting.
5. Where audit findings indicate financial mismanagement, the Executive Council shall take appropriate disciplinary or legal action within **thirty (30) days**.

Article 34: Financial Year

The financial year of the Association shall commence on the **1st day of April** and end on the **31st day of March** of the following year.

Article 35: Property of the Association

1. All movable and immovable property acquired by the Association shall be registered in its name.
2. No member or officer shall claim ownership, individually or jointly, of any Association property.
3. Disposal or transfer of Association property shall only be made upon approval by the AGM and ratification by the Patron.

Article 36: Transparency and Accountability

1. All members of the Executive Council shall uphold the highest standards of **integrity, accountability, and transparency** in handling Association resources.
2. Any misuse, misappropriation, or unauthorized use of Association funds or property shall constitute **gross misconduct** and attract disciplinary action, including removal from office and restitution.
3. The Executive Council shall maintain an **open-book policy**, allowing members to inspect financial records upon reasonable written request.

Article 37: Emergency Expenditure

1. The Executive Council may authorize emergency expenditure where urgent circumstances arise, provided that:
 - a) The amount does not exceed **ten percent (10%)** of the approved annual budget.
 - b) Such expenditure is reported in writing to the next Executive Council meeting and included in the quarterly financial report.

Article 38: Dissolution and Disposal of Assets

1. In the event of dissolution of the Association, all remaining assets after settlement of liabilities shall be transferred to the **Kenyatta University School of Medicine Welfare Account** or any other body approved by the AGM and Patron.

CHAPTER SEVEN: CONSTITUTIONAL OVERSIGHT

Article 39: Purpose

To ensure that all activities, decisions, and processes of the Association are conducted in accordance with this Constitution, University regulations, and applicable laws.

Article 40: Oversight Bodies

The following bodies shall ensure compliance:

1. **Executive Council** – Responsible for day-to-day adherence to constitutional provisions.
2. **Leadership Selection Committee (LSC)** – Oversees all leadership selection processes and ensures compliance with constitutional provisions related to appointments.
3. **Patron** – Provides advisory oversight and guidance on constitutional interpretation and University compliance.
4. **Constitutional Oversight Committee (COC)** – Comprising all **outgoing Executive Council members who are not seeking any leadership positions**. The COC shall:
 - a) Review major decisions and actions for constitutional compliance.
 - b) Advise the Executive Council and LSC on interpretation of constitutional provisions.
 - c) Audit critical processes, including leadership selection, finances, and disciplinary proceedings.

Article 41: Tenure of the Committee

1. Members of the COC shall serve a term of **one (1) year**, aligned with the leadership transition cycle.
2. Members may serve only **while they are outgoing Executive Council members not seeking positions**.
3. Members may resign with **28-day notice** or be removed for misconduct/failure to perform duties via **two-thirds (2/3) majority vote of the AGM**.

Article 42: Authority and Reporting

1. The Oversight Bodies have the authority to report breaches of the Constitution to the AGM or the Board of Trustees.
2. Recommendations from the Oversight Bodies shall be binding unless overturned by a **two-thirds (2/3) majority vote of the AGM**.
3. All activities and audits shall be documented and submitted in writing to the AGM and kept as part of the Association's official records.

Article 43: Independence

1. Members of the Constitutional Oversight Committee shall **not hold any Executive Council positions during their tenure on the COC** to ensure impartiality.
2. The Patron shall not have voting rights but may provide guidance and clarification on constitutional matters.

CHAPTER EIGHT: ALUMNI ENGAGEMENT AND RELATIONS

Article 44: Establishment

1. There shall be established an **Alumni Engagement and Relations Committee (AERC)** under the Association to foster continuous collaboration between **AKUMS** and its alumni for the advancement of academic, professional, and social objectives.
2. The AERC shall operate as a **liaison framework** between the Association, its alumni, and the Dean's Office, ensuring mutual growth and sustained engagement.

Article 45: Objectives

The objectives of the Committee shall be to:

- a) Maintain a structured and sustainable relationship between AKUMS and its alumni.
- b) Facilitate mentorship, career guidance, and professional exposure for current members.
- c) Create and maintain an updated database of AKUMS alumni for communication, networking, and partnership.
- d) Engage alumni in academic, research, and community service activities of the Association.
- e) Enhance the image, legacy, and network strength of AKUMS at both national and international levels.
- f) Mobilize alumni support—both technical and material—to strengthen the Association's programs.

Article 46: Composition

The Committee shall consist of:

- a) The **Secretary-General**, who shall serve as the Chairperson.
- b) The **Deputy Secretary-General**, who shall serve as the Secretary.
- c) **Three members** appointed by the Executive Council, one of whom shall be a Class Representative.
- d) **At least one alumnus or alumna**, nominated by the Committee and approved by the Executive Council, to serve as an **Advisory Member** without voting rights.
- e) The **Patron** may attend Committee meetings in an advisory capacity when deemed necessary.

Article 47: Functions

The Committee shall:

- a) Develop and implement policies governing AKUMS–Alumni collaboration, subject to approval by the Executive Council.
- b) Organize **annual alumni–student mentorship forums**, workshops, and networking events.
- c) Coordinate **internship, elective, and community engagement opportunities** in partnership with alumni and relevant institutions.
- d) Ensure proper communication between alumni and the Association through newsletters, digital platforms, and official databases.
- e) Represent the interests of AKUMS alumni in matters relating to the growth, development, and continuity of the Association.
- f) Recommend **outstanding alumni for recognition or honorary awards** by the Association.

Article 48: Accountability and Reporting

1. The AERC shall operate under the oversight of the **Executive Council** and shall be accountable to it.
 2. The Committee shall submit an **annual written report** to the Executive Council and present a summary of its activities to the **Annual General Meeting (AGM)**.
 3. All alumni-related engagements shall comply with **University policies**, professional standards, and the provisions of this Constitution.
 4. The Committee may develop **Terms of Reference (TORs)** to guide its operations, subject to approval by the Executive Council and endorsement by the Dean's Office.
2. Under no circumstances shall the assets be distributed among individual members.



CHAPTER NINE: DISCIPLINARY PROCEDURES AND CONFLICT RESOLUTION

Article 49: Guiding Principles

1. All members of the Association shall observe discipline, integrity, and mutual respect as guided by this Constitution and the core values of the Association.
2. Disciplinary and conflict resolution processes shall be guided by the principles of **natural justice, fair hearing, and proportionality of sanctions.**
3. No member shall be penalized without being given an opportunity to defend themselves before the appropriate organ.

Article 50: Disciplinary Offences

A member shall be deemed to have committed a disciplinary offence if they:

1. Act in a manner that **tarnishes the image or discredits the name** of the Association.
2. Engage in **corruption, misappropriation of funds, or misuse of office.**
3. Deliberately **disrupt, sabotage, or obstruct** the functioning of the Association or its organs.
4. Violate **constitutional provisions, resolutions of the AGM, or lawful decisions** of the Executive Council.
5. Exhibit **gross misconduct**, including verbal or physical abuse, discrimination, or harassment of another member.

Article 51: Disciplinary Procedures

1. **Initiation of Complaint**
 - Any member may lodge a written complaint against another member or officer to the Secretary General.
 - The Secretary General shall forward the complaint to the **Disciplinary Committee** within seven (7) days.
2. **Composition of the Disciplinary Committee**
 - The Committee shall consist of:
 - a) The Deputy President – **Chairperson**
 - b) The Secretary General – **Secretary**
 - c) One member of the Executive Council not directly involved in the matter
 - d) Two class representatives from non-involved years, appointed by the Council
 - e) The Patron – **Advisory Role (Non-voting)**
3. **Hearing Process**
 - The accused shall receive written notice of the allegations and a chance to respond within seven (7) days.
 - Hearings shall be conducted fairly, with both sides given a right to be heard and present evidence or witnesses.
 - Decisions shall be made by simple majority vote.
4. **Possible Disciplinary Actions**

Depending on the severity of the offence, the Committee may recommend:

 - a) Written warning
 - b) Suspension from certain privileges or duties

- c) Removal from office (subject to ratification by the Executive Council or AGM)
- d) Expulsion from the Association (subject to two-thirds majority of the AGM)

5. **Right of Appeal**

- Any disciplined member has the right to appeal to the **General Assembly (AGM or Special GM)** within fourteen (14) days of communication of the decision.
- The decision of the AGM shall be final.

Article 52: Conflict Resolution

1. Internal disputes shall be handled **amicably** through dialogue, mediation, and reconciliation before resorting to formal disciplinary processes.
2. Conflicts within committees or between members and the Executive Council shall first be referred to the **Secretary General** for mediation.
3. Unresolved disputes shall be escalated to the **Patron**, whose advisory decision shall guide the way forward.
4. If a conflict involves the entire Executive Council, an **Independent Mediation Panel** shall be constituted by the Patron, comprising three impartial alumni or staff members.

Article 53: Restoration and Reconciliation

1. The Association shall emphasize **restorative justice**, allowing disciplined members to reconcile and reintegrate into the community.
2. Members who acknowledge wrongdoing and show genuine remorse may have sanctions reviewed or lifted upon recommendation by the Disciplinary Committee and approval by the Executive Council.

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CHAPTER TEN: CONSTITUTIONAL AMENDMENTS

Article 54: Authority to Amend

1. The authority to amend this Constitution shall vest in the **General Assembly** of the Association.
2. Amendments shall only be valid if **initiated, debated, and ratified** according to the provisions of this Chapter.

Article 55: Initiation of Amendments

An amendment may be proposed by:

1. The **Executive Council**, through a resolution supported by at least **two-thirds ($\frac{2}{3}$)** of its members; or
2. At least **one-third ($\frac{1}{3}$)** of the registered members of the Association, through a written petition addressed to the **Secretary General**, clearly indicating:
 - The Article(s) to be amended, and
 - The justification for the proposed amendment.

Article 56: Procedure for Amendment

1. **Notice of Amendment**
 - The Secretary General shall circulate the proposed amendment(s) to all members **at least twenty-one (21) days** prior to the General Assembly or Special General Meeting where they will be considered.
2. **Deliberation and Voting**
 - The proposed amendment shall be presented and debated during the **AGM** or a **Special General Meeting** convened for that purpose.
 - A quorum of **two-thirds ($\frac{2}{3}$)** of registered active members shall be required for deliberation.
 - An amendment shall be adopted upon approval by at least **two-thirds ($\frac{2}{3}$)** of the members present and voting.
3. **Authentication**
 - All adopted amendments shall be recorded in the minutes and signed by the **President, Secretary General, and Patron.**
 - The updated Constitution shall be availed to all members within **thirty (30) days** of ratification.

Article 57: Limitations to Amendment

1. No amendment shall contravene:
 - The **laws of Kenya**,
 - The **regulations of Kenyatta University**, or
 - The **core objectives and principles** of the Association.
2. Amendments affecting the **name, objectives, or dissolution clause** of the Association shall require ratification by **three-quarters ($\frac{3}{4}$)** of all registered active members.
3. No amendment shall be passed in a meeting that lacks quorum or has not been duly convened with proper notice.

Article 58: Periodic Review

1. This Constitution shall be **reviewed every five (5) years** to maintain relevance with the evolving academic, professional, and social needs of members.
2. The **2025 Constitutional Review** shall be deemed the **official periodic review**, marking five years since the last comprehensive review.
3. The **Constitutional Review Committee**, appointed by the Executive Council and approved by the General Assembly, shall:
 - a) Collect and compile proposed amendments from members;
 - b) Facilitate consultations and member sensitization; and
 - c) Present the final draft for adoption by the General Assembly



CHAPTER ELEVEN: MISCELLANEOUS

Article 59: The Constitutional Review Committee (CRC)

1. Establishment

- The Association shall establish a **Constitutional Review Committee (CRC)** every five (5) years, or as deemed necessary by the General Assembly.
- The **2026 Constitutional Review Committee** shall be recognized as the official review body for the ongoing constitutional reform process.

2. Composition

- The CRC shall comprise **seven (7)** members appointed by the **Executive Council** and approved by the **General Assembly**, as follows:
 - a) One (1) representative from each of Years 2–6;
 - b) One (1) alumnus representative;
 - c) One (1) faculty advisor or staff liaison (non-voting, advisory capacity).

3. Functions

The CRC shall:

- a) Collect and consolidate constitutional amendment proposals from members;
- b) Review the Constitution for consistency, clarity, and compliance with university and national regulations;
- c) Facilitate consultative sessions and public participation among members;
- d) Draft and present the revised Constitution to the General Assembly for adoption.

4. Term and Dissolution

- The Committee shall serve for a period not exceeding **six (6) months**, after which it shall automatically stand dissolved upon ratification of the new Constitution.
- Members of the CRC shall not hold any other executive position during their term to ensure impartiality.

Article 60: Interpretation of the Constitution

1. Primary Authority

The authority to interpret this Constitution shall rest with the **Constitutional Oversight Committee (COC)**.

2. Appeal Mechanism

Decisions of the COC may be appealed to the **General Assembly**, whose ruling shall be **final and binding**.

3. Principle of Interpretation

In cases of ambiguity or conflict between provisions, the **spirit and intent of the Constitution** shall prevail over the literal meaning.

4. Reference for Unprovided Matters

Matters not expressly provided for in this Constitution shall be guided by:

- a) The **Kenyatta University Students' Association (KUSA) Constitution**;
- b) The **University's Rules, Regulations, and Policies**; and
- c) The **laws of Kenya**.

5. Consistency Requirement

All interpretations shall be consistent with **University regulations and national law**, ensuring legality and institutional compliance.

Article 61: Transitional Provisions

1. All office bearers serving at the time of adoption of this revised Constitution shall continue in office until the next duly held elections under this Constitution.
2. All assets, liabilities, and obligations of the Association prior to the enactment of this Constitution shall remain valid and binding under the new constitutional order.
3. The provisions of this Constitution shall come into force immediately upon adoption by the General Assembly, unless otherwise specified.

Article 62: Supremacy Clause

1. This Constitution is the **supreme governing document** of the Association and shall override all previous constitutions, by-laws, or internal regulations inconsistent with it.
2. All organs and members of the Association shall act in conformity with the provisions herein.

Article 63: The Board of Trustees

1. **Establishment**
 - There shall be a **Board of Trustees** of the Association composed of **three (3)** members nominated by the outgoing Executive Council and approved by the General Assembly.
 - The Patron shall serve as an **ex officio advisor** to the Board of Trustees.
2. **Composition**

The Board shall consist of:

 - a) One (1) alumnus of the Association with at least two years post-graduation experience;
 - b) One (1) faculty representative nominated by the Dean of the School of Medicine;
 - c) One (1) former Executive Council member of integrity and good standing.
3. **Functions**

The Board of Trustees shall:

 - a) Act as the **custodian of all Association property and assets**;
 - b) Provide **advisory and oversight** support to the Executive Council on financial, legal, and constitutional matters;
 - c) Approve long-term partnerships, external funding, or donations made in the name of the Association;
 - d) Ensure the **continuity and integrity** of the Association during transition or dissolution;
 - e) Convene in extraordinary circumstances when the Association's continuity or assets are at risk.
4. **Tenure**
 - Members shall serve for **three (3) years**, renewable once.
 - The Board shall meet at least once per year or upon request by the Executive Council or Patron.

Article 64: Dissolution of the Association

1. The Association shall only be dissolved by a resolution supported by at least **three-quarters (¾)** of all registered and subscribed members at a **Special General Meeting (SGM)** called specifically for that purpose.

2. Notice of the motion for dissolution shall be circulated at least **thirty (30) days** prior to the meeting.
3. Upon dissolution, the **Board of Trustees**, in consultation with the **Patron** and **Dean of the School of Medicine**, shall:
 - a) Settle all lawful debts and liabilities;
 - b) Conduct a proper audit of all financial records;
 - c) Oversee the transfer of remaining assets to the **School of Medicine** or to another **medical student organization** with similar objectives, as approved by the University Administration.
4. No member shall personally benefit from any property of the Association upon dissolution.
5. The final report of dissolution shall be submitted to the **Dean of the School of Medicine** and the **KUSA Secretariat** for official record.

